

ComplianceCheck

Pay-as-you-go Compliance Assessments for Indian SMEs

Statutory Health Check Assessment Report

EPF, ESI, Professional Tax, Gratuity & Bonus Compliance
Key Labour Statutes for Indian Businesses

Prepared For

Sample Enterprises Pvt Ltd

Maharashtra | Manufacturing

Employees: 51-100

Assessment Date: 25 July 2026

33%

Overall Compliance Score

Executive Summary

33%

Overall Compliance Score

Risk Level

Critical Risk

Penalty Exposure

Severe

Category-wise Compliance

Category	Score	Compliance
Provident Fund	50%	1/2
Employee State Insurance	33%	1/3
Professional Tax	33%	1/3
Gratuity	50%	1/2
Statutory Bonus	0%	0/2

Key Findings

- * Total Compliance Score: 33%
- * Risk Level: Critical Risk
- * Areas Requiring Attention: 8 High Priority Items
- * Compliant Areas: 4 areas meet requirements

HIGH Priority Action Items

Address immediately to mitigate compliance risks.

HIGH

Provident Fund

Monthly PF Contribution Deposit

"EPF Scheme 1952 - Para 38 | EPS 1995 - Para 6"

Steps to Address:

1. Calculate arrears with 12% interest immediately
2. File ECR (Electronic Challan cum Return) on Unified Portal
3. Pay via online challan (EPFO accepts only online payments)
4. Submit IW-1 form if wage arrears are being paid
5. Set up auto-reminders for 10th of each month to ensure timely deposit

Deadline: 15th of following month

Penalty: 12% p.a. interest on delayed deposits + damages up to 100% of arrears

Ref: EPF Scheme 1952 - Para 38 | EPS 1995 - Para 6

HIGH

Employee State Insurance

ESIC Registration

"ESI Act, 1948 - Section 2A | ESI (Central) Rules 1950 - Rule 10"

Steps to Address:

1. Register on ESIC Portal (esic.gov.in/employerlogin)
2. Obtain 17-digit Employer Code
3. Generate Temporary IDs for all employees
4. Link employees Aadhaar for permanent IP numbers
5. Declare wages and pay first contribution within 15 days

Deadline: Within 15 days of becoming applicable (10+ employees)

Penalty: Twice the contribution amount + interest at 12% p.a.

Ref: ESI Act, 1948 - Section 2A | ESI (Central) Rules 1950 - Rule 10

HIGH

Employee State Insurance

Wage Ceiling Compliance

"ESI Act, 1948 - Section 2(9) | Notification dated 06.10.2016"

Steps to Address:

1. Review salary structure of all employees monthly
2. Employees crossing Rs.21,000 exit ESI coverage
3. Provide exit documentation to affected employees
4. Consider group health insurance for employees above ESI ceiling

Deadline: Ongoing monitoring

Penalty: Non-coverage leads to denial of benefits and retrospective liability

Ref: ESI Act, 1948 - Section 2(9) | Notification dated 06.10.2016

HIGH

Professional Tax

State Applicability Check

"Article 276 of Constitution of India | State-specific PT Acts"

Steps to Address:

1. Verify if your operating state levies Professional Tax
2. States WITH PT: Maharashtra, Karnataka, West Bengal, Tamil Nadu, Gujarat, Andhra Pradesh, Telangana, Kerala, Assam, Meghalaya, Odisha, Tripura, Sikkim, Jharkhand, Bihar
3. States WITHOUT PT: Delhi, Haryana, UP, Rajasthan, Punjab (confirm current status)
4. If applicable, register within 30 days of starting operations

Deadline: N/A - Depends on state of operation

Penalty: Varies by state: Rs.5 to Rs.5,000 per month of non-compliance

Ref: Article 276 of Constitution of India | State-specific PT Acts

HIGH

Professional Tax

Monthly PT Deduction and Deposit

"State PT Acts - Collection and deposit provisions"

Steps to Address:

1. Review state-specific PT slabs for salary brackets
2. Configure payroll system to auto-deduct PT from salaries
3. File monthly/quarterly PT returns as per state rules
4. Maharashtra: Monthly if PT > Rs.50,000/year, else quarterly
5. Maintain Form III-B register of employees liable for PT

Deadline: Maharashtra: 30th of following month | Karnataka: 20th | Others vary

Penalty: Interest 1-2% per month + penalties for late filing

Ref: State PT Acts - Collection and deposit provisions

HIGH

Gratuity

Gratuity Liability Tracking

"Payment of Gratuity Act, 1972 - Section 4"

Steps to Address:

1. Calculate gratuity liability: $(15 \times \text{Last drawn salary} \times \text{Years of service}) / 26$
2. Create gratuity register with all employees having 4+ years service
3. Maximum gratuity ceiling: Rs.20,00,000 (as of 2024)
4. Include gratuity provision in annual financial statements
5. Consider actuarial valuation for accurate liability assessment

Deadline: Continuous tracking; payment within 30 days of becoming due

Penalty: Simple interest at 10% p.a. from due date + up to 6 months imprisonment for default

Ref: Payment of Gratuity Act, 1972 - Section 4

HIGH

Statutory Bonus

Minimum Bonus Payment

"Payment of Bonus Act, 1965 - Section 10 | Bonus ceiling notification 2016"

Steps to Address:

1. Identify eligible employees: Worked 30+ days, earning up to Rs.21,000/month (basic + DA)
2. Calculate minimum bonus: 8.33% of salary or Rs.100, whichever is higher
3. Calculate allocable surplus and maximum bonus (up to 20%)
4. Pay bonus by 30th November for March year-end companies
5. New establishments exempted for first 5 years if incurring losses

Deadline: Within 8 months of closing the accounting year

Penalty: Imprisonment up to 6 months and/or fine up to Rs.1,000

HIGH

Statutory Bonus

Bonus Registers and Timely Payment

"Payment of Bonus Rules, 1975 - Rule 4 | Form A, B, C, D registers"

Steps to Address:

1. Maintain Form A: Computation of allocable surplus
2. Maintain Form B: Set on/set off statement
3. Maintain Form C: Bonus paid to each employee
4. Maintain Form D: Annual return (submit to Labour Inspector by 31st Jan)
5. Issue bonus payment slips to all eligible employees

Deadline: Payment: 30th Nov (March YE) | Registers: Maintain for 8 years

Penalty: Failure to maintain registers: Fine up to Rs.1,000 per instance

Ref: Payment of Bonus Rules, 1975 - Rule 4 | Form A, B, C, D registers

Compliant Areas (4)

These areas meet EPF, ESI, Professional Tax, Gratuity & Bonus Compliance requirements based on your responses

Provident Fund

[Y] EPFO Registration

Employee State Insurance

[Y] Monthly ESI Contribution Deposit

Professional Tax

[Y] PTRC Registration

Gratuity

[Y] Gratuity Funding/Insurance

Next Steps & Resources

Recommended Timeline

Period	Action
Immediate	Address HIGH priority items
Short-term (30-60 days)	Complete MEDIUM priority items
Ongoing	Implement LOW priority improvements
Annual	Re-assessment and compliance review

Government Resources

EPFO Unified Portal

<https://unifiedportal-emp.epfindia.gov.in>

ESIC Portal

<https://www.esic.gov.in>

Income Tax (Prof. Tax)

<https://incometaxindia.gov.in>

Ministry of Labour

<https://labour.gov.in>

Shram Suvidha Portal

<https://shramsuvudha.gov.in>

Applicable Legislation

- * Employees Provident Funds and Miscellaneous Provisions Act, 1952
- * Employees State Insurance Act, 1948
- * Payment of Gratuity Act, 1972
- * Payment of Bonus Act, 1965
- * State Professional Tax Acts
- * Code on Social Security, 2020 (when notified)

Key Compliance Deadlines

- * EPF/ESI Monthly Deposit: 15th of following month
- * ECR Filing (EPF): 15th of following month
- * ESI Half-yearly Return (Form 6): 11th May / 11th November
- * Professional Tax (Monthly): State-specific (typically 21st)
- * Gratuity Payment: Within 30 days of becoming payable
- * Bonus Payment: Within 8 months of close of accounting year

Schedule Your Next Assessment

We recommend re-assessing your compliance status every 6-12 months. Visit compliancecheck.co.in to schedule your next assessment.

Disclaimer: This report is generated based on your responses and should not be construed as legal advice. Please consult with a legal professional for specific compliance guidance.

Report Generated: 25 July 2026

Assessment ID: SAMPLE-STATUTORY-HEALTH

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